

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302512	SMITH VS CRUISE AMERICA, INC.	MOTION FOR SUMMARY ADJUDICATION

Tentative Ruling: The Court GRANTS Plaintiff's Request for Judicial Notice. The Court OVERRULES Plaintiff's objections to moving evidence of the Cruise Defendants. The Court exercises its discretion to consider late-filed declarations and accompanying exhibits in opposition to this motion and sustains the objections thereto on the grounds stated. The Court GRANTS the motion for summary adjudication of Plaintiff's second cause of action for negligence. The Court finds that issue number two presented in this motion is MOOT because Plaintiff dismissed the third cause of action for violation of implied warranty of merchantability. Similarly, the Court finds issue number three likewise MOOT because Plaintiff dismissed his demand for punitive damages against the Cruise Defendants.

Issue #1

As a matter of law, Cruise Defendants did not have a duty to warn of the alleged defect as alleged in Plaintiff's Second Cause of Action for Negligence because any defect was not known or knowable to Cruise Defendants. Consequently, Plaintiff's Second Cause of Action for Negligence must fail.

"[T]o support a finding of negligence, a plaintiff must show that defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury." (*Nally v. Grace Cmty. Church* (1988) 47 Cal.3d 278, 292.). Here, the Cruise Defendants have focused solely on the duty element and, they are specifically claiming that they had no duty to warn Mr. Smith of the danger posed by the defective RV.

Again, Plaintiff filed a Complaint for 1) Strict Products Liability; 2) Negligence; and 3) Breach of Implied Warranty of Merchantability on May 10, 2023 against Cruise Defendants, among others. (UMF No. 1.) Plaintiff alleged in discovery that he suffered a burn to his left foot on or about June 7, 2021 caused by the extreme heat that arose from the engine exhaust manifold on to the floorboard area of the RV ("INCIDENT"). (UMF No. 2.)

Plaintiff further alleged in discovery that the design, manufacture, maintenance, modification, and/or removal of the fire-wall insulation in, around and/or under the front passenger floorboard area created a defective and dangerous condition in which the passenger floorboard area would become dangerously hot while the Subject Vehicle was being used in its usual manner. (UMF No. 3.) The defect in the RV caused the temperature of the floorboard to become extremely high and to burn Plaintiff's left foot. (UMF NO. 3.) Specifically, as to the Cruise Defendants, Plaintiff alleged:

"The engine exhaust manifold exits the vehicle from under the right front passenger side compartment of the vehicle in the center console engine compartment housing. Plaintiff is informed and believes and based thereon alleges that Cruise

America removed, or caused to be removed, the fire-wall insulation under the front passenger floorboard area of the RV. This insulation protects the floorboard area from the intense heat emanating from the engine exhaust manifold. The removal of the insulation created a defective and dangerous condition in which the passenger floorboard area would become dangerously hot while the vehicle was being used in its usual manner. As a result of this latent defect, the RV presented a risk to the consumer of serious injury if the consumer was in contact with the floorboard during normal operation of the vehicle. Cruise America did not warn Plaintiff of the existing defects and dangerous conditions in the RV.”

(UMF No. 4.)

Plaintiff further alleged the following against the Cruise Defendants:

“The RV was not fit for the ordinary purpose for which it was to be used in that it was defective in such a way as to pose an unreasonable risk of harm to the user of the RV. The RV was therefore not of the same quality as those generally acceptable in the trade. Due to the defects in the RV, it was not merchantable nor fit for its purpose, which was a breach of the implied warranties of such conditions as provided in California Commercial Code Sections 2314 and 2315.”

(UMF No. 5.)

In the Opposition, Plaintiff does not dispute that the Cruise Defendants did not design or manufacturer the subject RV. (UMF Nos. 8, 9.) Plaintiff has also failed to submit any facts demonstrating that the Cruise Defendants designed, manufactured or modified the subject RV. (UMS Nos. 11, 12, Plaintiff’s UMF (“PI UMF”) Nos. 1-25.)

The only issue remaining in this motion is whether the Cruise Defendants had a duty to warn of the alleged defect. The following facts are not disputed by Plaintiff:

- (1) No rental customers for any of the 66 rentals of the subject RV prior to the incident reported any complaints related to heat emanating into the passenger floorboard or any other part of the cabin. (UMF No. 20.)
- (2) No rental customers for any of the 45 rentals after the incident reported any complaints related to heat emanating into the passenger floorboard or any other part of the cabin. (UMF No. 22.)
- (3) Ford did not make any recommendations to the Cruise Defendants to modify the subject vehicle or not to allow it back into service following the March 2022, inspection after the incident. (UMF No. 32.)

These undisputed facts alone, especially the manufacturer/designer of the vehicle who has superior knowledge of its workings approving the Subject RV as-is, establishes that there was no defect that could have been known or knowable to the Cruise Defendants.

In the Opposition, Plaintiff relies almost exclusively on gapping between the doghouse insulation and seal, a loose doghouse latch, and hanging wire in the passenger compartment as the basis for the alleged defect being known or knowable to the Cruise Defendants. (PI UMF Nos. 17-19.) However, as noted by the Cruise Defendants, it is

speculation and conjecture that the subject defects were present at the time of the alleged incident. These were uncovered during an inspection almost three years post-incident, and after the subject vehicle had traveled an additional 45,693 miles. (*Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1214 [The opposing party may rely upon inferences, but “those inferences must be reasonably deducible from the evidence, and not such as are derived from speculation, conjecture, imagination, or guesswork. [Citation.]”])

Again, Plaintiff does not dispute that the Cruise Defendants had no role in either the design or manufacture of the subject vehicle. (UMF Nos. 8, 9.) Further, Plaintiff offers no actual evidence that the Cruise Defendants removed any heat insulation or modified the vehicle in any way. (UMF Nos. 11, 12.) Rather, the Opposition focuses on whether Mr. Smalley meant “modification” or if that clear, unambiguous term may have had another meaning. (UMF No. 12.) However, this does not constitute a dispute of fact. (*Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 215, 226-227.) Instead, it is tantamount to Plaintiff arguing the proffered fact without any competing evidence.

It is also undisputed that the Cruise Defendants did not request any modifications be performed on the subject RV prior to the incident. (UMF No. 13.) Plaintiff fails to raise a triable issue of fact on this issue.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2306477	BERNIGER VS BORRAYO	MOTION TO COMPEL THE DEPOSITION OF DEFENDANT JUAN MUNOZ, JR. AND REQUEST FOR SANCTIONS

Tentative Ruling: Denied without prejudice to Plaintiff bringing a motion to reopen discovery.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402061	PEREZ VS KIA AMERICA, INC.	MOTION FOR ATTORNEYS' FEES

Tentative Ruling: Denied as MOOT.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600620	WELLS FARGO BANK, NATIONAL ASSOCIATION VS LOS TIERREROS TRUCKING, INC.	DEMURRER TO ANSWER

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.